

An Act

ENROLLED SENATE
BILL NO. 1204

By: Mann of the Senate

and

Gise and West (Tammy) of
the House

An Act relating to school employees; amending 70 O.S. 2021, Section 6-104, as amended by Section 2, Chapter 57, O.S.L. 2025 (70 O.S. Supp. 2025, Section 6-104), which relates to sick leave for teachers and support personnel; requiring school districts to grant certain amount of paid bereavement leave to certain teachers and school support employees; directing bereavement leave to be in addition to certain leave due to miscarriage; prohibiting certain leave from negating certain negotiated leave policies; amending Section 7, Chapter 291, O.S.L. 2023 (70 O.S. Supp. 2025, Section 6-104.9), which relates to the Public School Paid Maternity Leave Revolving Fund; allowing fund to be used for expenses related to paid bereavement leave; updating statutory language; updating statutory references; providing an effective date; and declaring an emergency.

SUBJECT: School employee bereavement leave

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 70 O.S. 2021, Section 6-104, as amended by Section 2, Chapter 57, O.S.L. 2025 (70 O.S. Supp. 2025, Section 6-104), is amended to read as follows:

Section 6-104. A. 1. The board of education of each school district in the state shall provide for sick leave for all teachers employed in the district and shall pay such teachers the full amount

of their contract salaries during any absence from their regular school duties for a period of time and under such conditions as the board may determine, but not less than the minimum benefits hereafter specified. Payment for sick leave shall be made on the basis of the current salary rate then in effect for the teacher receiving the payment. Unless otherwise provided in Section 6-104.8 of this title, the plan shall provide that a teacher may be absent from his or her duties due to personal accidental injury, illness or pregnancy, or accidental injury or illness in the immediate family without the loss of salary for not to exceed ten (10) days during each school year, except that ~~said~~ such absence without loss of salary for teachers employed on an eleven-month contract shall not exceed eleven (11) days during each school year and for those teachers employed on a twelve-month contract shall not exceed twelve (12) days during each school year, if ~~said~~ such contract is for the work period, and not merely for pay purposes. The right to such leave shall vest at the beginning of the school year. Each school district shall provide for all teachers a minimum of three (3) days for personal business leave, upon the request of the teacher. Salary deductions for such leave shall not exceed the salary level for substitute teachers. Provided further, that these terms for personal business leave shall not negate any locally negotiated leave policies which exceed the minimum benefits ~~stated above~~ set forth in this subsection. Each school district may provide not more than five (5) days each year for emergency leave. Each school district ~~will~~ shall determine the purposes for which emergency leave can be used. Those days shall not be chargeable to sick leave and ~~will~~ shall be noncumulative. Unused sick leave shall be cumulative up to a total of sixty (60) days, and cumulative sick leave shall be transferable to another school district or to the Oklahoma School for the Blind or the Oklahoma School for the Deaf where the teacher is employed the next succeeding school year, provided that the number of days transferred shall not exceed the maximum days permitted by the receiving school and that such transferred days shall be used first in case of illness and, provided further, that if the receiving school pays teachers for unused sick leave upon retirement or termination of contract, then ~~said~~ such payments shall be for only those days accumulated in the receiving school. The ~~school~~ board of education of the sending school district shall certify the exact number of days eligible for transfer.

2. If a teacher is employed at the Oklahoma School for the Blind or the Oklahoma School for the Deaf after July 1, 2017, any unused sick leave up to a total of sixty (60) days that is accumulated at a school district prior to such date shall be transferable.

B. The plan of each school district for sick leave benefits may include other terms and conditions, but shall not provide less sick leave benefits than those prescribed herein. Hospital and medical proceeds may not be charged against sick leave benefits, but the proceeds received by the teacher from any insurance provided by the district for loss of compensable time may be charged against sick leave benefits. Provided the board of education may provide all or part of hospital and medical benefits, and sickness, accident, health, and life insurance or any ~~of the aforesaid~~ such benefits for any or all of its employees. On authorization of the teacher, the district may approve payroll deductions for such teacher's portion of the ~~aforesaid~~ benefits.

C. Each school district shall grant a teacher leave for jury service or as a witness subpoenaed in a criminal, civil, or juvenile proceeding and shall pay the teacher during such service the full, current contract salary. Provided that the district may deduct any compensation received for serving as a juror or witness from the teacher's salary during such service.

D. 1. A school district shall also provide for benefits for personnel other than teachers. Benefits for support personnel employees shall include provisions for paid sick leave of at least one (1) day per month of employment not to exceed the number of hours per day for which they are regularly employed cumulative to a total of sixty (60) days and cumulative sick leave shall be transferable to another school district where the person is employed the next succeeding school year; provided, that the number of days transferred shall not exceed the maximum days permitted by the receiving district and that such transferred days shall be used first in case of illness up to a maximum of ten (10) transferred days per school year unless the ~~local~~ school district board of education authorizes the use of additional transferred days during the school year in an amount set by the board and, provided further, that if the receiving district pays such person for unused sick leave upon retirement or termination of employment, then ~~said~~ such

payments shall be for only those days accumulated in the receiving district. The ~~school~~ board of education of the sending district shall certify the exact number of days eligible for transfer. Each school district shall provide for all support employees, a minimum of three (3) days for personal business leave, upon the request of the support employee. Salary deductions for personal business leave shall not exceed an amount necessary to cover the costs of services provided to the district by the support employee and shall not exceed the salary of the support employee. The terms for personal business leave provided by this subsection shall not negate any locally negotiated leave policies which exceed the minimum benefits ~~stated above~~ set forth in this subsection. Payment for such leave shall be calculated with regard to the definition of "support employee" provided by Section 6-101.40 of this title. ~~Provided;~~ provided, however, that such benefits shall not exceed those authorized for teachers ~~hereunder~~ pursuant to this section.

2. Support employees, as defined by Section 6-101.40 of this title, shall be entitled to pay for any time lost when school is closed on account of epidemics or otherwise when an order for such closing has been issued by a health officer authorized by law to issue the order.

E. Each school district shall grant a teacher or support personnel employee three (3) days of paid bereavement leave following the death of the teacher's or employee's spouse or child, which shall include a miscarriage. Bereavement leave following a miscarriage shall be in addition to and not in place of sick leave due to miscarriage and recovery therefrom. The terms for bereavement leave provided by this subsection shall not negate any locally negotiated leave policies which exceed the minimum benefits set forth in this subsection.

SECTION 2. AMENDATORY Section 7, Chapter 291, O.S.L. 2023 (70 O.S. Supp. 2025, Section 6-104.9), is amended to read as follows:

Section 6-104.9. A. There is hereby created in the State Treasury a revolving fund for the State Board of Education to be designated the "Public School Paid Maternity Leave Revolving Fund". The fund shall be a continuing fund, not subject to fiscal year limitations, and shall consist of all monies received by the State

Board of Education from state appropriations provided for the purposes set forth in Sections 6-104 and 6-104.8 of this title. All monies accruing to the credit of the fund are hereby appropriated and may be budgeted and expended by the State Board of Education for the purpose of reimbursing school districts for expenses related to providing paid maternity and bereavement leave as provided for in subsection B of this section. Expenditures from the fund shall be made upon warrants issued by the State Treasurer against claims filed as prescribed by law with the Director of the Office of Management and Enterprise Services for approval and payment.

B. School districts in this state shall file claims with the State Board of Education for reimbursement of expenses related to providing eligible employees with paid maternity leave as provided for in Section ~~4~~ 6-104.8 of this ~~act~~ title and paid bereavement leave as provided for in Section 6-104 of this title.

SECTION 3. This act shall become effective July 1, 2026.

SECTION 4. It being immediately necessary for the preservation of the public peace, health, or safety, an emergency is hereby declared to exist, by reason whereof this act shall take effect and be in full force from and after its passage and approval.

Passed the Senate the 26th day of March, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 6th day of May, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____